

Short Title.	Session and Chapter.
Firearms Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 12.
Children and Young Persons (Scotland) Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 37.
Local Government Superannuation (Scotland) Act, 1937... ..	1 Edw. 8 & 1 Geo. 6. c. 69.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
National Health Service (Scotland) Act, 1947	10 & 11 Geo. 6. c. 27.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Local Government (Scotland) Act, 1947	10 & 11 Geo. 6. c. 43.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Criminal Justice Act, 1948	11 & 12 Geo. 6. c. 58.

CHAPTER 95

Nurses (Scotland) Act, 1949

ARRANGEMENT OF SECTIONS

Reconstitution of the General Nursing Council for Scotland

Section

1. Reconstitution of the General Nursing Council and consequential provisions.

Training of Nurses

2. Regional nurse-training committees.
3. Schemes for the training of nurses.
4. Research and experimental training of nurses.
5. Expenditure on training of nurses.
6. Expenses of regional nurse-training committees.

Miscellaneous Amendments of Nurses (Scotland) Acts

7. The Mental Nurses Committee.
8. Registration of nurses trained abroad.
9. Closing of parts of the register.
10. Provisions relating to the approval of training institutions.
11. Fees and contributions in respect of training institutions.
12. Admission to the register of persons included in the list, &c.
13. Removal of limitation on fee for retention on the register or the roll.
14. Information with respect to nurses.
15. Penalization of acts falsely implying inclusion in the list.
16. Allowances to members of the Council and the Assistant Nurses Committee.

Supplementary Provisions

Section

17. Rules and orders.
18. Expenses of the Council.
19. Reports to the Secretary of State.
20. Membership of the Council, &c., not to involve Parliamentary disqualification.
21. Interpretation.
22. Short title, citation, extent and repeal.

SCHEDULES :

First Schedule.—The General Nursing Council for Scotland.

Second Schedule.—Regional Nurse-Training Committees.

Third Schedule.—The Mental Nurses Committee.

Fourth Schedule.—Enactments Repealed.

An Act to reconstitute the General Nursing Council for Scotland and otherwise to amend the Nurses (Scotland) Acts, 1919 to 1945, and to make further provision with respect to the training of nurses for the sick.

[16th December, 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Reconstitution of the General Nursing Council for Scotland

Reconstitution
of the
General
Nursing
Council and
consequential
provisions.

1.—(1) On the appointed day the General Nursing Council for Scotland (in this Act referred to as “the Council”) shall cease to be constituted in accordance with the Schedule to the Act of 1919 and shall be reconstituted in accordance with the First Schedule to this Act.

(2) The Act of 1919 shall have effect as if, in paragraph 5 of the Schedule thereto (which provides that the members of the Council shall hold office for a term of five years),—

- (a) in relation to the members of the Council appointed in the year nineteen hundred and forty-seven, a reference to the period beginning with the seventh day of December in that year and ending with the day immediately preceding the appointed day had been substituted for the reference to a term of five years; and
- (b) in relation to the members of the Council elected in the year nineteen hundred and forty-five, a reference to the period beginning with the seventh day of December in that year and ending with the day immediately preceding the appointed day had been so substituted.

(3) The members of the Assistant Nurses Committee appointed by the Council who hold office on the day immediately preceding the appointed day shall vacate office on the expiration of the first-mentioned day (without prejudice however to their eligibility for re-appointment), and the vacancies shall be filled by the making, by the Council, of fresh appointments of members who shall hold office for the residue of the term of office then current of the other members of the Committee.

(4) The supplementary provisions contained in the First Schedule to this Act shall have effect with respect to the Council as reconstituted by this section and for the purposes of the reconstitution of the Council, and it shall be the duty of the Council as constituted in accordance with the enactments relating to the constitution thereof which are in force at the commencement of this Act to do all things requisite for securing, in accordance with that Schedule, the election of such of the members of the Council as so reconstituted as are required by that Schedule to be elected, so as to enable them to come into office on the appointed day.

Training of Nurses

2.—(1) The Secretary of State shall, after consulting the Council, by order constitute, in accordance with the Second Schedule to this Act, a regional nurse-training committee for each area as hereinafter defined and any such committee shall exercise, as respects the area for which it has been so constituted, the functions in this Act assigned to it. Regional
nurse-training
committees.

(2) It shall be the duty of a regional nurse-training committee—

- (a) generally to supervise the training of nurses in accordance with the training rules, and in particular to have regard as respects persons engaged in such training, to the methods employed by those persons of training nurses ;
- (b) to report to the Council from time to time on the matters referred to in the last foregoing paragraph ; and
- (c) to advise and assist the Council on matters referred to them by the Council which may include matters relating to the approval of institutions for the purposes of the training rules.

(3) The supplementary provisions contained in the Second Schedule to this Act shall have effect with respect to regional nurse-training committees.

(4) In this section the expression "area" means a hospital area:

Provided that the Secretary of State may by order direct that an area consisting of two or more hospital areas shall be an area for the purposes of this section.

Schemes for
the training
of nurses.

3.—(1) Where it appears to them necessary, in order to ensure that full and proper use is made of resources available for the purpose, a regional nurse-training committee may prepare and submit to the Council a scheme for the training of nurses, either by a Board of Management acting on behalf of a Regional Hospital Board, or by any other authority or person engaged in the training of nurses who makes a request in that behalf to the committee, or jointly by any two or more such Boards of Management, authorities or persons.

(2) Before preparing a scheme under the last foregoing subsection a regional nurse-training committee shall consult any Regional Hospital Board concerned, and shall on or before the day on which the scheme is submitted to the Council serve a copy of the scheme on any such Regional Hospital Board.

(3) The Council may approve, with or without modifications (which may include additions or exceptions) any scheme submitted to them under subsection (1) of this section:

Provided that where any Regional Hospital Board on whom a copy of the scheme is required by the last foregoing subsection to be served, represents, within two months after such service, that the scheme, so far as it relates to a hospital vested in the Secretary of State and situated in the area of the Board, should not be approved or should be approved subject to such modifications as may be specified in the representations, the Council shall before approving the scheme give due consideration to the representations.

(4) Subject to the provisions of section ten of this Act, a scheme approved under this section may be varied or revoked by a subsequent scheme so approved, or by the Council.

(5) An institution in which the training of nurses is carried on in accordance with a scheme for the time being approved under this section shall be deemed to be an approved institution for the purposes of the training rules.

Research and
experimental
training of
nurses.

4.—(1) It shall be the duty of a regional nurse-training committee to promote, with a view to securing the improvement of methods of training nurses, research and investigation into matters relating to the training of nurses, and to render to the Council reports of the results of research and investigation promoted by the committee.

(2) If the Council are of opinion that it would be advantageous that a trial should be made of a scheme of training and examinations to be undergone and passed by persons as a condition of

their admission to the register or, as the case may be, the roll, being training and examinations differing from, but appearing to the Council to be no less efficient than, the training and examinations for the time being required by rules made by the Council to be so undergone and passed, they may, with the approval of the Secretary of State by resolution adopt the scheme for such period as may be specified in the resolution and in relation to such institutions situated in such area for which a regional nurse-training committee is constituted under this Act as may be so specified, being institutions appearing to the Council to be suitable for the purpose of carrying out the scheme therein.

(3) A scheme of training and examinations adopted by a resolution of the Council under this section shall provide that, during the period for which it is so adopted, persons who undergo to the satisfaction of the Council, in an institution or institutions specified in the resolution adopting the scheme, the training specified in the scheme and who pass the examinations so specified shall, notwithstanding anything in any rules made by the Council, be entitled on making an application in that behalf to be admitted to the register or, as the case may be, the roll, and may contain such incidental and supplementary provisions (including provisions for charging fees in respect of the undergoing of examinations specified in the scheme) as appear to the Council to be requisite or expedient for the purposes of the scheme.

(4) The period for which a scheme of training and examinations is adopted under this section may from time to time be extended by resolution of the Council for such period as may be specified in the resolution.

5.—(1) Expenditure incurred by a Board of Management in respect of the training of nurses, being expenditure of such description as the Secretary of State may specify for the purpose of this subsection, shall, so far as it is incurred in accordance with estimates approved by the regional nurse-training committee, instead of being defrayed in accordance with section fifty-four of the National Health Service (Scotland) Act, 1947, be defrayed by that committee.

Expenditure
on training
of nurses.

(2) A regional nurse-training committee may make contributions towards the expenses incurred in training nurses by any authority or person, other than a Board of Management, engaged in training nurses in the area for which the committee is constituted.

(3) Any question arising under subsection (1) of this section shall be determined by the Secretary of State.

6. All expenses incurred by a regional nurse-training committee with the approval of the Council shall be defrayed by the Council.

Expenses of
regional
nurse-training
committees.

The Mental
Nurses
Committee.

Miscellaneous Amendments of Nurses (Scotland) Acts

7.—(1) On the expiration of the period of three months beginning with the appointed day or such longer period as the Secretary of State may by order specify, there shall be established a Committee of the Council, to be called the Mental Nurses Committee, constituted in accordance with the Third Schedule to this Act.

(2) The following matters, namely—

- (a) any matter which wholly or mainly concerns registered mental nurses or registered nurses for mental defectives (other than a question whether a person shall be registered or shall be removed from or restored to the register or a matter arising out of any such question); and
- (b) any matter relating to the training of persons for admission to the supplementary part of the register containing the names of nurses trained in the nursing and care of persons suffering from mental diseases or to the supplementary part of the register containing the names of nurses trained in the nursing and care of persons suffering from mental defect,

shall stand referred to the Mental Nurses Committee, and any such question as aforesaid or matter arising thereout, and any other matter, may be referred by the Council to that Committee; and the Committee shall consider all such matters and report upon them to the Council, and the Council, before taking any action on any such matter, shall, unless in the opinion of the Council the matter is urgent, receive and consider the report of the Committee:

Provided that any matter which stands referred to the Mental Nurses Committee or is referred to them by the Council shall be finally dealt with by the Committee on behalf of the Council if, and in so far as, the Council expressly authorise the Committee to deal finally with it, and the Committee shall make a report to the Council as to the way they have dealt with it.

(3) The Council may pay to the members of the Mental Nurses Committee sums (to be calculated in accordance with directions to be given by the Secretary of State) in respect of any loss of earnings they would otherwise have made or any additional expenses (including travelling and subsistence expenses) to which they would not otherwise have been subject being loss or expenses necessarily suffered or incurred by them for the purpose of enabling them to perform duties as members of the Mental Nurses Committee.

(4) The supplementary provisions contained in the Third Schedule to this Act shall have effect with respect to the Mental Nurses Committee and for the purposes of the establishment thereof.

8.—(1) A person who proves to the satisfaction of the Council that in a country or territory outside the United Kingdom, he successfully completed his training either generally as a nurse or as a nurse of some special class in accordance with a scheme of training recognised by the Council as being satisfactory for the purposes of this subsection, that he underwent his training in an institution so recognised and that he is of good character shall, on making an application in the prescribed manner and on payment of such fee, if any, as may be prescribed, be entitled to be registered in the part of the register appearing to the Council to be appropriate to his case. Registration of nurses trained abroad.

(2) If, in the case of a person who proves to the satisfaction of the Council that he successfully completed his training either generally as a nurse or as a nurse of some special class in a country or territory outside the United Kingdom but who is unable to prove that his training was in accordance with a scheme of training recognised by the Council as being satisfactory for the purposes of the foregoing subsection and that he underwent his training in an institution so recognised, the Council are of opinion that he could properly be registered after undergoing to their satisfaction such further training in the United Kingdom as may be specified by them and passing such examinations, if any, as may be so specified, they may, if they are satisfied that he is of good character, register him if, after undergoing the specified training in the United Kingdom to their satisfaction and passing any specified examinations, he makes, in the prescribed manner, an application in that behalf and pays such fees as may be prescribed.

(3) Subsections (1) and (2) of section six of the Act of 1919 (which provide for the registration of nurses registered in any part of His Majesty's dominions outside the United Kingdom) shall cease to have effect.

9.—(1) On the date on which rules made by the Council under section three of the Act of 1919 providing for the admission of male nurses to the general part of the register first come into operation, the supplementary part of the register containing the names of male nurses shall be amalgamated with the general part of the register. Closing of parts of the register.

(2) If, with respect to any part of the register (other than the general part or the part containing the names of male nurses) the Council at any time make a request in that behalf to the

Secretary of State, he may by order direct that, after such a date as may be specified in the order, no person shall be admitted to that part of the register.

(3) No request under the last foregoing subsection shall be made by the Council with respect to—

- (a) the supplementary part of the register containing the names of nurses trained in the nursing and care of persons suffering from mental diseases ;
- (b) the supplementary part of the register containing the names of nurses trained in the nursing and care of persons suffering from mental defect ; or
- (c) the supplementary part of the register containing the names of nurses trained in the nursing of sick children, unless the Council are satisfied that means exist whereby members of the public can readily ascertain whether a registered nurse has been trained in the nursing and care of persons suffering from mental diseases or in the nursing and care of persons suffering from mental defect or in the nursing of sick children as the case may be.

(4) Where a direction is given under subsection (2) of this section with respect to the supplementary part of the register containing the names of registered mental nurses or with respect to the supplementary part of the register containing the names of registered nurses for mental defectives, the Secretary of State, after consulting the Council, may by the order containing the direction or a subsequent order amend the First and Third Schedules to this Act to such extent as appears to him requisite or expedient in consequence of the giving of the direction, and where a direction is given under the last foregoing subsection with respect to the supplementary part of the register containing the names of registered sick children's nurses, or with respect to the supplementary part of the register containing the names of registered fever nurses, the Secretary of State, after consulting the Council, may by the order containing the direction or a subsequent order amend the said First Schedule to such extent as appears to him requisite or expedient in consequence of the giving of the direction.

(5) Nothing in this section shall affect the power of the Council to remove a person from, or restore a person to, the register.

Provisions
relating to the
approval of
training
institutions.

10.—(1) If the Council are of opinion that they would be justified in—

- (a) refusing to approve an institution for the purposes of the training rules, or
- (b) withdrawing approval given by them for those purposes to an institution, or

- (c) varying or revoking a scheme for the training of nurses approved under section three of this Act,

they shall give to the persons responsible for the management of the institution or, as the case may be, to the persons responsible for the management of any institution which, if the variation or revocation of the scheme takes effect, would cease to be an approved institution for the purposes of the training rules, notice of such opinion and of the grounds on which it was arrived at, and shall not proceed to a final determination of the question whether or not to refuse to approve the institution or to withdraw their approval thereof or to vary or revoke the scheme, as the case may be, until they have afforded those persons an opportunity of making representations in writing to the Council and, if required by such persons, of being heard by the Council.

(2) The Council shall notify their final determination of any such question as aforesaid to the persons to whom they are required by the last foregoing subsection to give such a notice as is therein mentioned and any such persons may at any time before the expiry of twenty-eight days from the notification to them of the determination of the Council require the matter to be referred to the decision of two persons or more appointed for the purpose by the Lord President of the Court of Session.

(3) There shall be paid to any persons appointed under the last foregoing subsection such fees and allowances as the Treasury may determine, and any sums required for the payment of such fees and allowances shall be paid out of moneys provided by Parliament.

(4) Subsection (2) of section seven of the Act of 1919 and subsection (2) of section five of the Act of 1943 (which provide for an appeal to the Secretary of State against such refusals as aforesaid) shall cease to have effect.

11.—(1) The Council may charge the persons responsible for the management of institutions approved by the Council for the purposes of the training rules and the persons responsible for the management of institutions the approval whereof by the Council for those purposes is sought by them, not being, in either case, institutions vested in the Secretary of State, such fees respectively, by way of contribution towards the expenses incurred in inspecting and approving institutions for those purposes, as may be prescribed.

Fees and contributions in respect of training institutions.

(2) The Secretary of State may make to the Council, out of moneys provided by Parliament, contributions of such amounts as he may determine towards the expenses of the Council in inspecting and approving for the purposes of the training rules institutions vested in him.

Admission to the register of persons included in the list, &c.

12.—(1) The Council shall make rules providing for the admission to the register, on payment of such fees (if any) as may be prescribed, of—

- (a) persons whose names are included in the list; and
- (b) persons other than as aforesaid who hold certificates issued by institutions which appear to the Council to be satisfactory for the purposes of this provision stating that they completed before the beginning of October, nineteen hundred and twenty-five, a course of training in nursing in the institution and who satisfy the Council that they are of good character and have adequate knowledge and experience of nursing.

(2) A person whose name is included in the list shall, on being admitted to the register, cease to be included in the list, and it shall be the duty of the Council to make requisite alterations therein.

Removal of limitation on fee for retention on the register or the roll.

13. The limitations respectively imposed by paragraph (b) of the proviso to subsection (1) of section five of the Act of 1919 and by paragraph (b) of the proviso to subsection (1) of section four of the Act of 1943 on the fee chargeable in respect of the retention of a name on the register and on the roll shall cease to have effect.

Information with respect to nurses.

14.—(1) Copies of the register, the roll and the list shall be kept at the office of the Council and shall be open to the inspection of any person without charge during usual business hours.

(2) If the Council determine in any year not to publish the register, the roll or the list, it shall be their duty to publish in such manner as the Secretary of State may direct, lists of persons who have been admitted to, removed from or restored to the register, the roll or the list during that year.

Penalization of acts falsely implying inclusion in the list.

15. Any person, who, not being a person whose name is included in the list, takes or uses any name, title, addition or description implying that his name is so included shall be liable on summary conviction to a fine not exceeding, in the case of a first conviction, ten pounds, and, in the case of a second or subsequent conviction, fifty pounds.

Allowances to members of the Council and the Assistant Nurses Committee.

16. The Council may pay to the members thereof and to the members of the Assistant Nurses Committee sums (to be calculated in accordance with directions to be given by the Secretary of State) in respect of any loss of earnings they would otherwise have made or any additional expenses (including travelling and subsistence expenses) to which they would not otherwise have been subject, being loss or expenses necessarily suffered or incurred by them for the purpose of enabling them to perform duties as members of the Council or Committee as the case may be.

Supplementary Provisions

17.—(1) The Council may make rules prescribing anything which by this Act is required or authorised to be prescribed. Rules and orders.

(2) Rules made by the Council under this Act shall not come into operation unless and until they are approved by the Secretary of State.

(3) The power conferred on the Secretary of State by this section and any power to make an order conferred on him by this Act shall be exercisable by statutory instrument.

(4) A statutory instrument by which the power conferred on the Secretary of State by this section is exercised and a statutory instrument containing an order made under the foregoing provisions of this Act or the Second Schedule thereto shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) Any power to make an order conferred on the Secretary of State by this Act shall be construed as including a power exercisable in the like manner and subject to the like conditions (if any) to revoke or vary the order.

18. All expenses incurred by the Council with the approval of the Secretary of State which are attributable to defraying expenditure incurred by regional nurse-training committees shall be defrayed by the Secretary of State out of moneys provided by Parliament, and all other expenses incurred by the Council under this Act and all expenses incurred by them under the Acts of 1919 and 1943 shall be defrayed out of fees and contributions received by them under this Act or the Acts of 1919 and 1943 or out of any other sums received by the Council. Expenses of the Council.

19.—(1) The Council shall annually, at such date as the Secretary of State may direct, make to the Secretary of State a report as to the discharge by them during the preceding year of their functions with respect to the training of nurses, and the Secretary of State shall lay every such report before Parliament. Reports to the Secretary of State.

(2) Section nine of the Act of 1919 is hereby repealed.

20. A member of the Council, the Assistant Nurses Committee, the Mental Nurses Committee, a regional nurse-training committee or a sub-committee of a regional nurse-training committee shall not, by reason of his membership, be rendered incapable of being elected, or of sitting and voting, as a member of the House of Commons. Membership of the Council, &c., not to involve Parliamentary disqualification.

21. In this Act unless the context otherwise requires the following expressions have the meanings hereby assigned to them respectively, that is to say:— Interpretation.

“the Act of 1919” means the Nurses Registration (Scotland) Act, 1919;

- "the Act of 1943" means the Nurses (Scotland) Act, 1943 ;
- "the appointed day" means the first day of April, nineteen hundred and fifty-one or such earlier day as the Secretary of State may by order appoint ;
- "chief male nurse" means a male nurse in charge of the male nurses employed in a mental hospital ;
- "the Council" has the meaning assigned to it by subsection (1) of section one of this Act ;
- "education authority" has the same meaning as in the Education (Scotland) Act, 1946 ;
- "hospital" has the same meaning as in the National Health Service (Scotland) Act, 1947 ;
- "hospital area" means an area for which a Regional Hospital Board is for the time being constituted under subsection (1) of section eleven of the National Health Service (Scotland) Act, 1947 ;
- "the list" means the list of nurses kept by the Council under section eighteen of the Act of 1943 ;
- "mental hospital" means a mental hospital for the purposes of the Lunacy (Scotland) Acts, 1857 to 1913 ;
- "nurse" means a nurse for the sick, and "nursing" shall be construed accordingly ;
- "prescribed" means prescribed by rules made by the Council under this Act ;
- "regional nurse-training committee" means a committee constituted by an order of the Secretary of State under subsection (1) of section two of this Act ;
- "the register" means the register of nurses established under the Act of 1919, and "registered" shall be construed accordingly ;
- "registered fever nurse" means a nurse whose name is included in the supplementary part of the register containing the names of nurses trained in the nursing of persons suffering from fever ;
- "registered nurse for mental defectives" means a nurse whose name is included in the supplementary part of the register containing the names of nurses trained in the nursing and care of persons suffering from mental defect ;
- "registered mental nurse" means a nurse whose name is included in the supplementary part of the register containing the names of nurses trained in the nursing and care of persons suffering from mental diseases ;
- "registered sick children's nurse" means a nurse whose name is included in the supplementary part of the register containing the names of nurses trained in the nursing of sick children ;

“supplementary part of the register” means a supplementary part thereof mentioned in subsection (2) of section two of the Act of 1919 or prescribed in pursuance of paragraph (e) of that subsection;

“the roll” means the roll of assistant nurses established under Part I of the Act of 1943, and “enrolled” shall be construed accordingly;

“the training rules” means rules relating to training made by the Council under section three of the Act of 1919 or section two of the Act of 1943.

22.—(1) This Act may be cited as the Nurses (Scotland) Act, 1949, and the Nurses (Scotland) Acts, 1919 to 1945, and this Act may be cited together as the Nurses (Scotland) Acts, 1919 to 1949. Short title,
citation, extent
and repeal.

(2) This Act shall extend to Scotland only.

(3) The enactments mentioned in the first and second columns of the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULES

FIRST SCHEDULE

Section 1.

THE GENERAL NURSING COUNCIL FOR SCOTLAND

New Constitution of the Council

1. The Council shall consist of—

- (a) thirteen persons elected as hereinafter mentioned;
- (b) eleven persons appointed by the Secretary of State;
- (c) two persons appointed by the Privy Council, of whom one shall be appointed to represent universities in Scotland.

2.—(1) Of the elected members of the Council—

- (a) seven, who shall be nurses (including male nurses) registered in the general part of the register, shall be elected by nurses so registered;
- (b) two, who shall be registered mental nurses or registered nurses for mental defectives, shall be elected by nurses so registered, and one of the persons so elected shall be a man and one a woman;
- (c) one, who shall be a registered fever nurse, shall be elected by registered fever nurses;
- (d) one, who shall be a registered sick children's nurse, shall be elected by registered sick children's nurses;
- (e) two, who shall be persons holding certificates given by virtue of section thirteen of the Act of 1943 (which provides for the giving of certificates to persons trained in the teaching of nursing), shall be elected by such persons.

1ST SCH.
—cont.

(2) Each of the nurses to be elected in pursuance of the last foregoing subparagraph shall, on the date of election, be engaged in Scotland in nursing or in other work for which the employment of a registered nurse is requisite or for which a registered nurse is commonly employed.

3. The members of the Council appointed by the Secretary of State shall include—

- (a) two registered nurses employed in services provided under Part III of the National Health Service (Scotland) Act, 1947, appointed by him after consultation with such persons and bodies as he thinks fit, being persons and bodies having special knowledge and experience of the work of nurses so employed ;
- (b) registered medical practitioners, appointed by him after consultation with such organisations representative of the medical profession as he thinks fit ;
- (c) persons with experience in hospital management, appointed by him after consultation with such persons and bodies having experience in hospital management as he thinks fit ;
- (d) persons with experience in local government, appointed by him after consultation with such local health authorities, or such organisations representative of local health authorities, as he thinks fit ; and
- (e) a person or persons with financial experience.

Supplementary Provisions

4. The members of the Council required by the foregoing provisions of this Schedule to be elected shall be elected in accordance with the prescribed scheme and in the prescribed manner.

5. The members of the Council shall hold office for a term of five years :

Provided that the members first appointed under sub-paragraph (b) or sub-paragraph (c) of paragraph 1 of this Schedule shall hold office for a term of three years.

6.—(1) If the place of a member of the Council becomes vacant before the expiration of his term of office whether by death, resignation or otherwise, the vacancy shall, if the member was appointed by the Secretary of State or the Privy Council, be filled by a person appointed by the Secretary of State or the Privy Council, as the case may be, and in any other case shall be filled by a person appointed by the Council.

(2) A person appointed to fill a casual vacancy occurring in the place of an elected member of the Council shall be a person who would be qualified for election to that place if an election were to take place on the date on which he is appointed and a person appointed to fill any other casual vacancy shall, if the place vacant was originally filled by a person required by the foregoing provisions of this Schedule to be a person of a particular class, himself be of that class.

(3) A person appointed to fill a casual vacancy shall hold office only so long as the member in whose stead he is appointed would have held office.

1ST SCH.
—cont.

7. A person ceasing to be a member of the Council shall be eligible for re-appointment or re-election.

8. The Council may enter into such agreements, acquire such property and do such things, as may in the opinion of the Council be necessary or desirable for the exercise or performance of any of their powers or duties, and may dispose as they think fit of any property acquired by them.

9. The powers of the Council may be exercised notwithstanding a vacancy in their number.

SECOND SCHEDULE

Section 2.

REGIONAL NURSE-TRAINING COMMITTEES

Constitution of Regional Nurse-Training Committees

1. A regional nurse-training committee for any area shall consist of such number of persons of each of the following classes as may be specified in the order constituting the committee, that is to say—

- (a) persons appointed by the Regional Hospital Board for the area for which the Committee is constituted, or, if that area comprises more than one hospital area, by the Regional Hospital Boards for those areas ;
- (b) persons appointed by the Council ;
- (c) persons appointed by the Central Midwives Board for Scotland ;
- (d) persons appointed by the Secretary of State after consultation with the local health authorities in the area ;
- (e) persons appointed by the Secretary of State after consultation with the education authorities in the area ; and
- (f) persons appointed by the Secretary of State after consultation with such universities as he thinks fit ;

and the said order may contain provisions with respect to the qualifications of members of the committee, so, however, that a majority of the members shall be registered nurses.

Supplementary Provisions

2. The Secretary of State may by order make provision—

- (a) with respect to the appointment, tenure of office and vacation of office of the members of a regional nurse-training committee for any area ;
- (b) with respect to the appointment of sub-committees of such a committee consisting wholly or partly of the members thereof and the delegation of functions to such sub-committees ;

2ND SCH.
—cont.

- (c) for the making by such a committee to the members thereof and to the members of any sub-committee thereof of such payments as may be specified in the order in respect of any loss of earnings they would otherwise have made or any additional expenses (including travelling and subsistence expenses) to which they would not otherwise have been subject, being loss or expenses necessarily suffered or incurred by them for the purpose of enabling them to perform duties as members of the committee or sub-committee as the case may be ;
- (d) with respect to the keeping of accounts of sums received and expended by such a committee and the making up and audit of those accounts and the times at which and the form in which estimates of their expenditure are to be submitted by them to the Council ; and
- (e) with respect to the procedure (including quorum) of such a committee.

3. It shall be the duty of the Regional Hospital Board for a hospital area for which a regional nurse-training committee is constituted under this Act, or, where the area for which the committee is constituted comprises more than one hospital area, of such one of the Regional Hospital Boards for those areas as the Secretary of State may direct, to take, so soon as may be after the constitution of the committee, the requisite steps to convoke the committee for the first meeting thereof.

4.—(1) It shall be the duty of the Regional Hospital Board for any area for which a regional nurse-training committee is constituted under this Act or, where the area for which the committee is constituted comprises more than one hospital area, of such one of the regional Hospital Boards for those areas as the Secretary of State may direct, to provide that committee, on such terms as may, in default of agreement, be determined by the Secretary of State with the services of such of the officers and servants of the Board and with such office accommodation as the committee may reasonably require.

(2) Without prejudice to the foregoing sub-paragraph a regional nurse-training committee may, with the consent of the Secretary of State, themselves employ officers and servants and may pay officers and servants employed by them such remuneration as they may determine.

(3) Any dispute arising under sub-paragraph (1) of this paragraph as to the reasonableness of any requirement shall be determined by the Secretary of State.

5. The chairman of a regional nurse-training committee shall be such one of the members thereof as may be selected by the committee.

6. The powers of a regional nurse-training committee may be exercised notwithstanding a vacancy in their number.

THIRD SCHEDULE

Section 7.

THE MENTAL NURSES COMMITTEE

Constitution of the Mental Nurses Committee

1.—(1) The Mental Nurses Committee shall consist of eleven persons, of whom—

- (a) five shall be members of the Council appointed by the Council ;
- (b) one shall be a registered mental nurse elected by persons who, on the date of the election, are registered mental nurses ; and
- (c) one shall be a registered nurse for mental defectives elected by persons who, on the date of the election are registered nurses for mental defectives ;
- (d) four shall be appointed by the Secretary of State.

(2) Of the members appointed by the Council, two shall be the registered mental nurses or registered nurses for mental defectives elected to membership thereof by nurses so registered.

(3) The members appointed by the Secretary of State shall respectively be a matron of a mental hospital which is an institution approved by the Council for the purposes of the training rules, a registered mental nurse engaged in the teaching of the nursing and care of persons suffering from mental diseases, a registered medical practitioner engaged in the teaching of psychiatry and a chief male nurse of such a mental hospital as aforesaid, and the appointment of each of those persons shall be made by the Secretary of State after consultation with such persons and bodies as he thinks fit, being persons and bodies having special knowledge and experience of the work of persons of the class to which the person to be appointed belongs.

Supplementary Provisions

2. The members of the Mental Nurses Committee required by the foregoing provisions of this Schedule to be elected shall be elected in accordance with the prescribed scheme and in the prescribed manner.

3. The members of the Mental Nurses Committee shall hold office for a term of five years :

Provided that

- (i) a member of the Committee appointed by the Council shall cease to hold office as such member if he ceases to be a member of the Council ; and
- (ii) the members of the Committee first appointed by the Secretary of State shall hold office for a term of three years.

4.—(1) If the place of a member of the Mental Nurses Committee becomes vacant before the expiration of his term of office, whether by death, resignation or otherwise, the vacancy shall, if the member was appointed by the Secretary of State, be filled by a person appointed by the Secretary of State, and, in any other case, shall be filled by a person appointed by the Council.

**3RD SCH.
—cont.**

(2) A person shall not be appointed to fill a casual vacancy in the place of any member of the Committee unless he possesses the qualification required by the foregoing provisions of this Schedule for election or, as the case may be, appointment under the said provisions to that place.

(3) A person appointed to fill a casual vacancy shall hold office only so long as the member in whose stead he is appointed would have held office.

5. A person ceasing to be a member of the Mental Nurses Committee shall be eligible for re-appointment or re-election.

6. The powers of the Mental Nurses Committee may be exercised notwithstanding a vacancy in their number.

7. The chairman of the Mental Nurses Committee shall be such one of the members of the Committee who are members of the Council as may be selected by the Committee.

8. The quorum of the Mental Nurses Committee shall be four.

9. The Mental Nurses Committee may, with the approval of the Council, make standing orders regulating the summoning of meetings of the Committee and the proceedings of the Committee.

Section 22.**FOURTH SCHEDULE
ENACTMENTS REPEALED**

Session and Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 5. c. 95.	The Nurses Registration (Scotland) Act, 1919.	As from the appointed day, in section one, subsection (2). As from the date of the first coming into operation of such rules as are referred to in subsection (1) of section nine of this Act, in section two, in subsection (2), paragraph (b). In section four, subsection (3). In section five, in subsection (1), paragraph (b) of the proviso. In section six, subsections (1) and (2). In section seven, subsection (2). Section nine. As from the appointed day, the Schedule.
6 & 7 Geo. 6. c. 33.	The Nurses (Scotland) Act, 1943.	In section three, subsection (3). In section four, in subsection (1), paragraph (b) of the proviso. In section five, subsection (2). Section nineteen.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Nurses Registration (Scotland) Act, 1919 ...	9 & 10 Geo. 5. c. 95.
Nurses (Scotland) Act, 1943 ...	6 & 7 Geo. 6. c. 33.
Education (Scotland) Act, 1946 ...	9 & 10 Geo. 6. c. 72.
National Health Service (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 27.

CHAPTER 96*Auxiliary and Reserve Forces Act, 1949*

ARRANGEMENT OF SECTIONS

PART I

TERRITORIAL ARMY AND ROYAL AUXILIARY AIR FORCE

Section

1. Establishment of territorial army associations for two or more counties.
2. Constitution of associations.
3. Powers and duties of associations.
4. Conditions of enlistment.
5. Conditions of service.
6. Calling out for home defence service and termination of such service.
7. Application of enactments to Royal Auxiliary Air Force.
8. Provisions consequent on renaming of auxiliary air force.

PART II

NAVAL AND MARINE RESERVES

9. Special class of Royal Fleet Reserve.
10. Liability of naval and marine reserves to be called into actual service.
11. Supplementary provisions as to calling out of naval and marine reserves.

PART III

ARMY RESERVE AND AIR FORCE RESERVE

12. Calling out of army reserve (including militia).
13. Supplementary provisions as to calling out under s. 12.
14. Application of enactments to air force reserve.
15. Amendment of 24 Geo. 5. c. 5.

PART IV

SUPPLEMENTARY

16. Supplementary and consequential provisions and repeals.
17. Interpretation.
18. Short title and citation.

SCHEDULES:

First Schedule.—Amendment of Enactments.

Second Schedule.—Enactments Repealed.